

Fair Work Ombudsman

I'm a migrant worker being treated unfairly

It can be difficult to deal with unfair treatment when you're a migrant worker.

Migrant workers and visa holders (including international students) have the same workplace entitlements and protections as all other employees in Australia.

On this page:

- [How to discuss your workplace rights](#)
- [If you need more support](#)
- [Tools and resources](#)
- [Related information](#)

How to discuss your workplace rights

Before you start – information you need

- Information about your [workplace entitlements](#) (www.fairwork.gov.au/employment-conditions).
- Translated information in our [Language help](#) (www.fairwork.gov.au/tools-and-resources/language-help) section.
- Your employer's business details, such as their ABN or registered address. This information can be found on a pay slip, employment contract or visa documentation.

Steps to take

1. Find out what the rules are

- We have [information and resources in over 30 languages](#) (www.fairwork.gov.au/tools-and-resources/language-help) to help you understand your workplace rights and obligations when working in Australia.
- You can use our [Pay Calculator](#) (www.fairwork.gov.au/pay-and-wages/pay-calculator) to work out your correct pay rate.

2. Understand you have rights and protections

- You're entitled to receive all of your workplace entitlements and protections, even if you haven't followed the rules of your visa. Read about these protections at [Visa holders and migrant workers](#) (www.fairwork.gov.au/find-help-for/visa-holders-migrants) page.
- New laws have been introduced to strengthen reporting protections for eligible visa holders

experiencing workplace exploitation, allowing workers to seek help without fear of visa cancellation. Find more information, visit [Visa protections – pilot programs](#) (www.fairwork.gov.au/find-help-for/visa-holders-migrants/visa-protections-pilot-programs).

3. Speak to your employer if you feel comfortable

- Once you've worked out your pay, talk to your employer to try to resolve the issue.
- Remember, an employer can't cancel your visa. Only the [Department of Home Affairs](#) (<https://immi.homeaffairs.gov.au/visas/working-in-australia/work-rights-and-exploitation>) can cancel a visa.

4. Contact us for help

- You can [contact us](#) (www.fairwork.gov.au/about-us/contact-us) for help if you are worried about speaking to your employer.
- If you aren't comfortable speaking to us directly or want to notify us on behalf of someone else, you can lodge an [anonymous report in English](#) (www.fairwork.gov.au/workplace-problems/fixing-a-workplace-problem/get-our-help-with-a-workplace-problem/anonymous-reporting) or [another language](#) (www.fairwork.gov.au/workplace-problems/fixing-a-workplace-problem/get-help-with-a-workplace-problem-in-your-language).

If you need more support

You can [contact us](#) (www.fairwork.gov.au/about-us/contact-us) for more information. We won't contact your employer unless you give us permission to do so.

If you would like to talk to us using a translator, call the Translating and Interpreting Service on 131 450. They will call us for you and interpret your question.

Other common workplace problems

- [My pay doesn't seem right](#) (www.fairwork.gov.au/workplace-problems/common-workplace-problems/my-pay-doesnt-seem-right)
- [I've been fired and I'm not sure what I'm entitled to](#) (www.fairwork.gov.au/workplace-problems/common-workplace-problems/ive-lost-my-job-and-im-not-sure-what-im-entitled-to)

- [Help with bullying in the workplace \(www.fairwork.gov.au/workplace-problems/common-workplace-problems/help-with-bullying-in-the-workplace\)](http://www.fairwork.gov.au/workplace-problems/common-workplace-problems/help-with-bullying-in-the-workplace)
- [I'm not getting pay slips \(www.fairwork.gov.au/workplace-problems/common-workplace-problems/im-not-getting-pay-slips\)](http://www.fairwork.gov.au/workplace-problems/common-workplace-problems/im-not-getting-pay-slips)
- [I could be in a sham contracting arrangement \(www.fairwork.gov.au/workplace-problems/common-workplace-problems/i-think-i-could-be-an-employee-not-a-contractor\)](http://www.fairwork.gov.au/workplace-problems/common-workplace-problems/i-think-i-could-be-an-employee-not-a-contractor)

Tools and resources

- [An employee's guide to fixing workplace problems \(www.fairwork.gov.au/sites/default/files/2025-04/fg-an-employees-guide-to-fixing-workplace-problems.docx\)](http://www.fairwork.gov.au/sites/default/files/2025-04/fg-an-employees-guide-to-fixing-workplace-problems.docx) [An employee's guide to fixing workplace problems \(www.fairwork.gov.au/sites/default/files/2025-04/fg-an-employees-guide-to-fixing-workplace-problems.pdf\)](http://www.fairwork.gov.au/sites/default/files/2025-04/fg-an-employees-guide-to-fixing-workplace-problems.pdf)
- [Language help \(www.fairwork.gov.au/tools-and-resources/language-help\)](http://www.fairwork.gov.au/tools-and-resources/language-help)

- [Report a workplace issue anonymously in your language \(www.fairwork.gov.au/workplace-problems/fixing-a-workplace-problem/workplace-help-in-other-languages/report-a-workplace-issue-in-your-language\)](http://www.fairwork.gov.au/workplace-problems/fixing-a-workplace-problem/workplace-help-in-other-languages/report-a-workplace-issue-in-your-language)
- [Find help for Visa holders and migrant workers \(www.fairwork.gov.au/find-help-for/visa-holders-migrants\)](http://www.fairwork.gov.au/find-help-for/visa-holders-migrants)
- [Record My Hours app \(www.fairwork.gov.au/tools-and-resources/record-my-hours-app\)](http://www.fairwork.gov.au/tools-and-resources/record-my-hours-app)

Related information

- [Ask for our help with a workplace problem \(www.fairwork.gov.au/workplace-problems/fixing-a-workplace-problem/ask-for-our-help-with-a-workplace-problem\)](http://www.fairwork.gov.au/workplace-problems/fixing-a-workplace-problem/ask-for-our-help-with-a-workplace-problem)
- [Department of Home Affairs \(https://immi.homeaffairs.gov.au/visas/working-in-australia/work-rights-and-exploitation\)](https://immi.homeaffairs.gov.au/visas/working-in-australia/work-rights-and-exploitation)
- [Visa protections – pilot programs \(www.fairwork.gov.au/find-help-for/visa-holders-migrants/visa-protections-pilot-programs\)](http://www.fairwork.gov.au/find-help-for/visa-holders-migrants/visa-protections-pilot-programs)
- [Workers rights and visa reporting protections \(https://immi.homeaffairs.gov.au/visas/working-in-australia/work-rights-and-exploitation\)](https://immi.homeaffairs.gov.au/visas/working-in-australia/work-rights-and-exploitation)

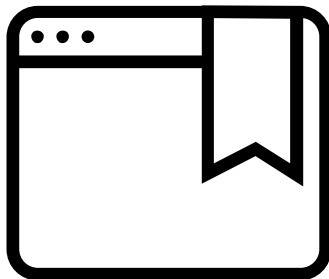
The Fair Work Ombudsman acknowledges the Traditional Custodians of Country throughout Australia and their continuing connection to land, waters, skies and communities. We pay our respects to them, their Cultures, and Elders past and present.



Did you find what you were looking for?

Thank you for your feedback. If you would like to tell us more about the information you've found today you can complete our [feedback form \(https://services.fairwork.gov.au/feedback/submit-a-feedback\)](https://services.fairwork.gov.au/feedback/submit-a-feedback).

Please note that comments aren't monitored for personal information or workplace complaints. If you have a question or concern about your job, entitlements or obligations, please [Contact us \(www.fairwork.gov.au/about-us/contact-us\)](http://www.fairwork.gov.au/about-us/contact-us).



[Bookmark to My account \(https://services.fairwork.gov.au/my-account/BookmarkToMyAccount?System=web&Title=I'm%20a%20migrant%20worker%20being%20treated%20unfairly%20-%20Fair%20Work%20Ombudsman&SourceURL=https%3A%2F%2Fwww.fairwork.gov.au%2Fworkplace-problems%2Fcommon-workplace-problems%2Fim-a-migrant-worker-being-treated-unfairly\)](https://services.fairwork.gov.au/my-account/BookmarkToMyAccount?System=web&Title=I'm%20a%20migrant%20worker%20being%20treated%20unfairly%20-%20Fair%20Work%20Ombudsman&SourceURL=https%3A%2F%2Fwww.fairwork.gov.au%2Fworkplace-problems%2Fcommon-workplace-problems%2Fim-a-migrant-worker-being-treated-unfairly)

Contact us

Fair Work Online: www.fairwork.gov.au

Fair Work Infoline: 13 13 94

Need language help?

Contacting the Translating and Interpreting Service (TIS) on 13 14 50

Hearing & speech assistance

Call through the National Relay Service (NRS):

For TTY: 13 36 77. Ask for the Fair Work Infoline 13 13 94

Speak & Listen: 1300 555 727. Ask for the Fair Work Infoline 13 13 94